

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Wurtzel	Team: Squad #02	CCRB Case #: 201501627	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 02/28/2015 11:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/28/2016	Precinct: 112		
Date/Time CV Reported Mon, 03/09/2015 9:23 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/09/2015 9:23 AM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Rahimullah Mashriqi	13315	950841	112 PCT		
2. POM Gianfranco Berlingerio	02501	948661	112 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . POM Rahimullah Mashriqi	Abuse: PO Rahimullah Mashriqi refused to provide his name and shield number to § 87(2)(b)	A . Unsubstantiated			
B . POM Gianfranco Berlingerio	Abuse: PO Gianfranco Berlingerio refused to provide his name and shield number to § 87(2)(b)	B . Unsubstantiated			

Case Summary

On February 28, 2015, at 11:30 a.m., § 87(2)(b) was called down the parking garage of his apartment building at § 87(2)(b) in Queens by his building manager. PO Rahimullah Mashriqi and PO Gianfrano Berlingiero from the 112th Precinct were in the garage and inspecting a damaged pillar adjacent to where § 87(2)(b) parked his vehicle that morning. PO Mashriqi ran a check on § 87(2)(b)'s license and placed him under arrest for § 87(2)(b). While being detained, § 87(2)(b) asked the officers twice for permission to photograph their identification and they replied that he could do so later (**Allegations A and B**). § 87(2)(b) asked the officers for permission to photograph their information a third time before his phone was taken from him at the stationhouse. Both officers told him that he could do so later and walked away. § 87(2)(b) did not have another opportunity to document the officers' information (encl. 3A-4F). § 87(2)(b) was charged with § 87(2)(b) and was issued a Desk Appearance Ticket which was filled out by PO Mashriqi (encl. 5A).

Mediation, Civil and Criminal Histories

This complaint was not suitable for mediation. § 87(2)(b) stated during his interview that he intended to file a Notice of Claim. A request for confirmation has been sent to the Comptroller's Office of the City of New York and will be added to the case file upon receipt (encl. 8A). § 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and CCRB Officer Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2A).
- PO Mashriqi has been a member of the NYPD for three years and has no prior CCRB allegations (encl. 1A).
- PO Berlingiero has been a member of the NYPD for four years and has no prior CCRB allegations (encl. 1B).

Findings and Recommendations

Identification of Subject Officers

§ 87(2)(b) provided a copy of his DAT, issued by PO Mashriqi, to the investigation. PO Mashriqi identified PO Berlingiero as his partner on this day. Both officers acknowledged interacting with § 87(2)(b) on the incident date. § 87(2)(g)

Recommendations

Allegation A – Abuse of Authority: PO Rahimullah Mashriqi refused to provide his name and shield number to § 87(2)(b)

Allegation B – Abuse of Authority: PO Gianfranco Berlingiero refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) alleged that PO Mashriqi and PO Berlingiero did not provide him with the opportunity to photograph their identifying information during his detainment. § 87(2)(b) did not ask the officers to verbally provide their information. PO Mashriqi stated that he verbally provided his name to § 87(2)(b) and stated that he could not recall § 87(2)(b) specifically asking for permission to photograph him or his identifying information (encl. 5H-I). PO Berlingiero could not recall § 87(2)(b) ever verbally asking for his name or shield number

and stated that he could not recall § 87(2)(b) ever asking for permission to photograph him or his identifying information. PO Berlingiero stated that he would have provided this information had he been asked (encl. 6D-E). § 87(2)(g)

It is therefore recommended that **Allegations A and B be closed as unsubstantiated.**

Pod: 2

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date